

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 21-17

OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK
EXPRESS (NORTH AMERICA) INC. - POSSIBLE VIOLATIONS OF 46
U.S.C. § 41102(C)

**UNOPPOSED MOTION FOR CLARIFICATION OF THE INITIAL
ORDER**

Respondent Ocean Network Express, PTE, LTD (“ONE”)¹ respectfully requests clarification with respect to the Initial Order (issued by the Presiding Officer on January 6, 2022 and served on undersigned counsel for Respondent ONE on January 13, 2022) ("Initial Order"), for the reasons stated below. The Federal Maritime Commission’s Bureau of Enforcement (“BOE”) has authorized us to represent that it does not oppose this motion.

¹ Undersigned counsel have concurrently entered an appearance in this proceeding for Respondent ONE. Respondent Ocean Network Express (North America), Inc. (“ONE NA”) is not an ocean common carrier, so the undersigned counsel have entered a only a special appearance for ONE NA for the sole purpose of challenging the Commission’s jurisdiction.

I.
Background

The Commission’s Order of Investigation and Hearing (“Order of Investigation”), issued on December 30, 2021, and served on ONE through the undersigned counsel for Respondent ONE by e-mail dated January 7, 2022, states, “Respondents must file with the Commission an answer to the Order of Investigation and Hearing and serve a copy of the answer on BOE within 25 days after being served with the Order of Investigation and Hearing as per 46 C.F.R. § 502.63(c).” Docket No. 21-27, *Ocean Network Express PTE LTD and Ocean Network Express (North America) Inc – Possible Violations of 46 U.S.C. § 41102(C)*, Order of Investigation and Hearing (FMC, December 30, 2021) at 6. Pursuant to the FMC’s rules of counting, that would make the Answer due on February 1, 2022.

The Initial Order states, “[d]ue to the expedited nature of this proceeding, it is not possible to follow the deadlines imposed by the Commission’s Rules. [...] Therefore, ... all deadlines will be shortened to half the time allowed by the Rules, rounded up.” Docket No. 21-27, *Ocean Network Express PTE LTD and Ocean Network Express (North America) Inc – Possible Violations of 46 U.S.C. § 41102(C)*, Initial Order (ALJ, January 6, 2022) at 1. The Initial Order does not on its face change the date for Answer, which was set by Commission Order, not just

the Rules, so Respondent seek clarification of the due date for the Answer, and relatedly the Joint Status Report.²

II. Discussion

ONE does not challenge the Presiding Officer's ability to change due dates set out in the Rules, subject to constraints imposed by law, including the Administrative Procedure Act and Due Process. We are, however, unsure whether the Presiding Officer has authority, or intended, to countermand a date specified by the Commission in its Order of Investigation. Accordingly, ONE seeks clarification as to the meaning/effect of the Initial Order.³

The Initial Order also states that the Joint Status Report is due by January 28, 2022, four days **before** the Answer is due pursuant to the Order of Investigation. Accordingly, BOE and ONE request that the Presiding Officer, in clarifying the due dates, also address the date for the Joint Status Report.

² Respondents have contemporaneously filed a Petition for Reconsideration and Recission with the Commission, which also requests the Commission to stay the proceedings before the Presiding Officer.

³ Respondent ONE further states that, inasmuch as it was not served with the Initial Order until January 13, 2022 it cannot reasonably be expected to file an Answer on January 18, 2022, especially given the intervening weekend and holiday. Accordingly, if the Presiding Officer determines that she has authority, and intended the Initial Order, to reduce the time for Answer, ONE asks the Presiding Officer to set a date for the Answer one week after the Presiding Officer issues her decision as to this motion.

III.

Conclusion

For the reasons above, Respondent respectfully request that the Presiding Officer issue an Order clarifying the due dates for the Answer and the Joint Status Report.

Dated: January 19, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

Rebecca A. Fenneman
D.C. Bar: No: 252585
Eric C. Jeffrey
D.C. Bar: No: 1722599
Jeffrey/Fenneman Law + Strategy,
PLLC
700 12th Street, NW
Suite 700
Washington, DC 20005
Telephone: 202-904-2301
Email:
EJeffrey@JeffreyFenneman.com
RFenneman@JeffreyFenneman.com

**ATTORNEYS FOR
RESPONDENT OCEAN
NETWORK EXPRESS PTE. LTD.**

CERTIFICATE OF SERVICE

I certify that on the 19 day of January, 2022, a true and correct copy of the foregoing document was served on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

ATTORNEYS FOR BUREAU OF ENFORCEMENT:

Benjamin K. Trogdon, Director
BTrogdon@fmc.gov

Cory Cinque, Trial Attorney
CCinque@fmc.gov

Brenda Doty, Trial Attorney
Bdoty@fmc.gov

Theron Korsak, Trial Attorney
TKorsak@fmc.gov

Bureau of Enforcement
Federal Maritime Commission
800 N. Capitol St., N.W.
Washington D.C. 20573
(202) 523 5783

/s/ Rebecca A. Fenneman
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Tel: (202) 904-2301
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005